

1 HOUSE BILL NO. 554

2 INTRODUCED BY B. LER, W. GALT, L. SCHUBERT, K. LOVE, G. OVERSTREET, C. SCHOMER, C.
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6 A BILL FOR AN ACT ENTITLED: "AN ACT REMOVING THE REQUIREMENT THAT THE DEPARTMENT OF
7 FISH, WILDLIFE, AND PARKS MANAGE, PROTECT, CLASSIFY, OR REGULATE WOLVES AS GAME
8 ANIMALS OR FURBEARERS; AND AMENDING SECTION 87-5-131, MCA."

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10 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

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12 **Section 1.** Section 87-5-131, MCA, is amended to read:

13 **"87-5-131. Process for delisting of gray wolf -- management following delisting.** (1) If the United
14 States fish and wildlife service removes the Northern Rocky Mountain or gray wolf from the United States' list of
15 endangered or threatened wildlife, the department is authorized to remove the wolf from the state list of
16 endangered species ~~upon~~on a determination by the department pursuant to this part that the wolf is no longer
17 endangered.

18 (2) Following state delisting of the wolf, the department shall manage the wolf as a species in need
19 of management. ~~until the department and the commission determine that the wolf no longer needs protection as~~
20 ~~a species in need of management and can be managed and protected as a game animal or furbearer. Upon~~
21 ~~making that determination, the commission may declare the wolf a game animal or a furbearer and may~~
22 ~~regulate the taking of a wolf as a game animal or furbearer.~~

23 (3) (a) Following state delisting of the wolf, the department, or the department of livestock,
24 pursuant to 81-7-102 and 81-7-103, may control wolves for the protection and safeguarding of livestock if the
25 control action is consistent with a wolf management plan approved by both the department and the department
26 of livestock.

27 (b) Any wolf management plan approved by the department and the department of livestock must
28 allow the issuance of special kill permits, also known as shoot-on-sight written take authorizations, by the

1 department to landowners or public land permittees who have experienced livestock depredation."

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